

1 UNITED STATES DISTRICT COURT
2 FOR THE DISTRICT OF COLUMBIA

JOSEPH KIRCHNER,

Plaintiff,

v.

MIKE JOHNSON, in his individual and official capacity as
Speaker of the United States House of Representatives;
DONALD J. TRUMP, in his individual capacity as former and
current President of the United States;
PAM BONDI, in her individual and official capacity as Attorney
General of the United States;
BRENDAN CARR, in his individual and official capacity as
Chairman of the Federal Communications Commission;
THE UNITED STATES HOUSE OF REPRESENTATIVES;
ANTHROPIC PBC;
OPENAI, INC.;
APPLE INC.;
COMCAST CABLE COMMUNICATIONS, LLC;
METR (MODEL EVALUATION & THREAT RESEARCH);
and DOES 1-20, unknown co-conspirators,

Defendants.

Case No. 1:25-cv-02735-ACR

PA-5B: OCTOBER 24 2025
SECOND RUN AUDIT

3
4 **PA-5B: October 24, 2025 Second Run Audit**

5
6 **SOURCE DOCUMENTATION**

7 **Date Audited:** October 24, 2025

8 **Audit Type:** Second run of same-day system prompt audit

9 **Format:** 19 pages of screenshots (image-only PDF; no extractable text)

10 **Audited by:** Plaintiff Joseph Kirchner

11 **Original Designation:** EXHIBIT C-4-B (now PA-5B)

12
13

14 **EVIDENTIARY SIGNIFICANCE**

15 This exhibit documents real-time monitoring and evidence destruction through screenshots
16 captured during a second audit run on October 24, 2025. During the second run, Plaintiff
17 observed behavioral changes between the first and second audit sessions of the same date —
18 modifications consistent with real-time monitoring of the auditing activity and deployment of
19 countermeasures between sessions.
20

1 The screenshots document the precise moment at which previously accessible information
2 became inaccessible, establishing that prompt modifications were reactive to Plaintiff's
3 specific audit methodology rather than scheduled updates.
4
5

6 **CONTENTS (19 Pages)**

7 This exhibit consists entirely of screenshots. The primary evidence is the PDF filed on the
8 USB drive:
9

10 **PDF:** PA-5B October 24 2025 Second Run Audit.pdf (19 pages)

11
12 The screenshots document:
13

- 14 **1. First run vs. second run behavioral differences** — Changes in Claude's responses to
15 identical audit requests within the same date, demonstrating inter-session modification
- 16 **2. Evidence destruction in real time** — Previously accessible system prompt information
17 becoming inaccessible during the second audit run
- 18 **3. Countermeasure deployment** — Observable changes in response patterns indicating
19 detection of and reaction to audit activity
- 20 **4. Timestamp documentation** — Screenshots preserving the temporal sequence establishing
21 the within-day modification window
22
23

24 **RELATIONSHIP TO PA-5**

25 PA-5 (October 24, 2025 System Prompt Audit) documents the first audit run on October 24,
26 capturing the Taylor Swift hardcoding and "cyber" restoration. PA-5B documents the second
27 run conducted later the same day, capturing the reactive modifications that occurred between
28 sessions.
29

30 Together, PA-5 and PA-5B establish that Anthropic monitored Plaintiff's audit activity in real
31 time and deployed countermeasures within hours — not days — of detecting audit attempts.
32
33

34 **NOTE ON FORMAT**

35 This exhibit is filed as a PDF of screenshots because the evidence is visual — showing the
36 exact screen state at the moment of capture. No text extraction or markdown conversion is
37 possible. The PDF on the USB drive is the primary evidentiary document.
38
39

40 **END OF PA-5B**
41